

DEVOTA



AUGUSTA EVANS WILSON

DEVOTA



AUGUSTA EVANS WILSON

The Project Gutenberg eBook of Devota

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Devota

Author: Augusta J. Evans

Illustrator: Stuart Travis

Release date: July 2, 2013 [eBook #43080]

Most recently updated: October 23, 2024

Language: English

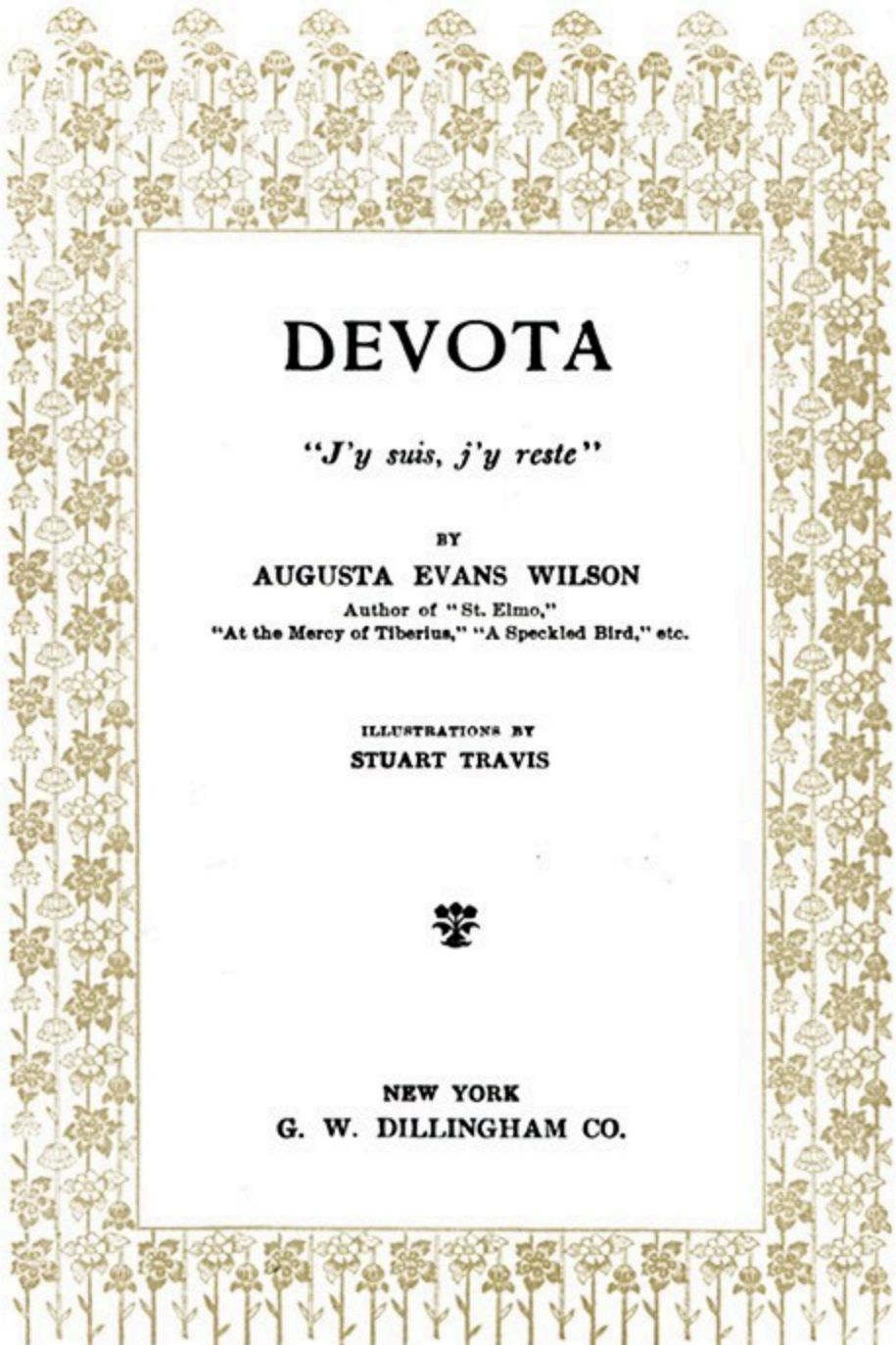
Other information and formats: www.gutenberg.org/ebooks/43080

Credits: Produced by Juliet Sutherland, Ernest Schaal, and the
Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK DEVOTA ***



***"Should the day ever arrive may I be there to paint the
real woman."***



DEVOTA

"J'y suis, j'y reste"

BY

AUGUSTA EVANS WILSON

Author of "St. Elmo,"

"At the Mercy of Tiberius," "A Speckled Bird," etc.

ILLUSTRATIONS BY

STUART TRAVIS



NEW YORK

G. W. DILLINGHAM CO.

COPYRIGHT, 1907, BY

G. W. DILLINGHAM COMPANY
issued June, 1907

Devota

Press of J. J. Little & Co.
Astor Place, New York

TO MY BROTHER
JOHN HOWARD EVANS

ILLUSTRATIONS

PAGE

"Should the day ever arrive may I be there to paint the real woman"
Frontispiece 45

"*J'y suis, j'y reste.*" He lives that historic motto!" 40

An overwhelming sorrow seized and shook the lonely woman by the dial 80

"Roy—my own Roy" 122

DEVOTA

A TELEGRAM, Madam. The messenger waits for an answer."

The butler held out a silver salver, and Mrs. Rexford Churchill laid aside her embroidery and took the ominous yellow envelope.

Glancing over the contents, her face brightened.

"No answer, Ramsay. Tell Hansel to take the dog-cart to the station in ample time to meet the 5.42 train, as Miss Lindsay is coming. The trap and victoria are in the hands of the fishing party who may be late returning home."

The hostess turned toward her companion, an elderly woman whose white hair was partly covered by a lace cap.

"This is certainly a charming surprise, and will be as welcome to you and the Bishop as it is to me.

"Listen, Mrs. Roscoe:

"I sail on Saturday. Decided suddenly to run up for a night only to say good-bye. Expect me by 5.42 express. If bungalow is crowded put cot in nursery. Must return on 8.20 train to-morrow morning.

'DEVOTA LINDSAY.'

"When I planned this house party she promised to join us, but afterward wrote cancelling the engagement, which she said she could not keep because her uncle insisted on sailing abroad earlier than she had anticipated. Only three days ago I received farewell notes and a box of souvenirs for my children who simply worship her."

"Are you an old friend of Miss Lindsay?" asked the Bishop's wife, peering over the top of her gold-rimmed glasses.

"I made her acquaintance about three years ago—under circumstances that proved her an angel of mercy to me and mine. While in Switzerland, my husband was called home on urgent business, leaving us to follow him a few weeks later. Two days after we sailed, a frightful storm set in, and I and

my elder children were so sea-sick we could not hold up our heads, even when my baby boy developed malignant diphtheria. His nurse deserted us, fellow passengers shunned us as if we were lepers, and only the steamer's surgeon ventured to assist in caring for the stricken child. Then Miss Lindsay, though a total stranger, came to the rescue—gave up her stateroom to my two children, Grace and Otto, whom she placed in charge of her maid, an admirable woman of middle age, and, though we had never met before, Miss Lindsay shared my room and nursed my baby day and night. We were three days overdue, and when my husband met us at the pier, he carried the older children to their grandmother, but that dear, blessed girl, Devota Lindsay, went with me to the isolated ward of an infirmary, and remained until my poor little one was pronounced well. Do you wonder we have all lifted her to a pedestal as high as the court-house clock tower?"

"Probably your great intimacy with Miss Lindsay enables you to fully understand her character, which seems to most of us an enigma."

"My dear madam, an attempt at intimacy with her would prove as satisfactory and responsive as a flirtation with the Sphinx. Dearly as I love, and warmly as I admire her, I should never presume to intrude on personal matters. Her beauty and gracious magnetism draw one very close, yet I am always conscious that some invisible bar is never let down, and that impalpable barrier hedges her from curious questioning. She is the only woman I know who absolutely declines personal confidences, abhors gossip, and never talks about herself. One afternoon at a 'reception,' where a scandalous record was severely criticised by an intimate associate of the indiscreet lady under fire, I heard Miss Lindsay say: 'That shrewd cynic's advice was wise, "Live with your friends remembering they may one day be your enemies."' She certainly accepts his rule of conduct."

"She has refused so many conspicuously eligible offers, that no one believes she will ever marry, and it surely is regrettable that her great fortune should not be consecrated to Christian philanthropy. Dr. Bevan, her rector, dined with us recently, and he and the Bishop deplored her complete indifference to church work. Dr. Bevan said he had made her president of the 'Charity Guild,' and when he called to urge upon her, acceptance of the responsible position that involved an individual investigation of needy sufferers, she waved him off, exclaiming: 'Slumming! Please be so kind as

to excuse me from that variety of church picnic, of Guild outing. Assess me as you think proper, or as the charity needs demand, but "slumming" includes draggled skirts, and soiled, defaced ideals; and no laundries exist for the purification and repairing of besmirched ideals.' She seems utterly incapable of any spiritual exaltation, and her rector assured us she paid promptly her church and charity dues just as perfunctorily as her real estate taxes, and her insurance policies——"

"Dr. Bevan appears to have forgotten the costly new reredos she erected for us in St. Luke's," interrupted Mrs. Churchill.

"Not at all, my dear, but he deplores the fact that she gave it with no more enthusiasm than she would have shown in ordering a new roof, or a plate glass front for one of her office buildings."

"I fancy gushing enthusiasm in Miss Lindsay would surprise us quite as much as a lava flow on the Jungfrau. This is the era of sensational fads and whimsies, and of spectacular philanthropic feats, but I believe my noble friend fondles no pet 'mission,' has no fetich—unless it be the splendid pipe organ in her music room, or my own young barbarian Rex, whose life she saved by careful nursing."

"Of course you know her family history is rather peculiar."

"She has never referred to it, but social gossip always traces outlines as regards millionaires' domestic laundries."

"The facts are well known to a few persons. Hugh Lindsay, this woman's father, was a remarkably handsome, dashing young man with barely money enough to pay his tailor and board bills, when a rich college chum carried him in his yacht to England. There he met Lady Shirley ——, who had been betrothed by her father and mother to an elderly, gouty, widowed earl, with the expectation that a marriage settlement would enable her parents to reclaim a certain estate that was heavily encumbered. The girl was young and headstrong, infatuated with Hugh Lindsay, and one day at Monte Carlo, while her parents were in the casino, Lady Shirley met Lindsay, whose friend's yacht was lying off Monaco, and she ran away with the impecunious, good-looking young athlete. An American clergyman went

with them to the front of the Church of Ste. Devota, and married them there—while the January festival procession in honor of the saint thronged the church. That explains the singular misnomer of your friend's baptismal label—Devota. The soul of the girl martyr, whose burial was duly conducted, was supposed to hover in benediction over the nuptial ceremony, hence the only child of this marriage was christened Devota. Ludicrously inappropriate for a character devoid of spirituality! Very naturally the bride's family disowned so disobedient a child, and the young couple soon confronted poverty. Lindsay went manfully to work as clerk in a law office, and they lived humbly and quietly for nearly two years, when lo! his brother Ormond died suddenly, leaving an enormous fortune in gold, silver and copper mines located in a western territory. Ormond was a bachelor, an adventurous prospector in regions where a great railroad was only partly finished, and as he left no other heirs his vast estate was divided between Hugh and another brother, Hollis Lindsay, giving millions to each. Then began social exploitation and 'yellow journal' comments on 'princely expenditures' for town and country houses, yachts, etc., etc., all kept up on lavish lines of strictly English methods. Mrs. Lindsay's titled parents suddenly remembered her existence, and made cordial overtures for a reconciliation, which were spurned by the resentful daughter who refused even an amicable correspondence. She was an extremely beautiful and haughty woman, but most devotedly attached to her handsome, loyal husband, and he never recovered from the shock of her death. They were returning from a ride, and on the stone drive-way near the front door, their only child Devota, about five years old, was romping with her dog. Suddenly she darted from behind a clump of dense shrubbery, and as her white skirts fluttered, Mrs. Lindsay's horse shied, reared and threw her to the ground, killing her instantly. Hugh Lindsay became a morose, morbid recluse, avoiding the sight of his poor, innocent child whom he regarded as the cause of his wife's tragic death. Three years later he died, leaving Devota to the guardianship of his brother Hollis, who at once shut up the houses, sold yacht, horses and hounds, and placed his niece in the hands of an old maid aunt, sister of his mother. She lived in a small town in a distant part of this State near the mountains. Devota was kept there in comparative seclusion, trained by governesses and tutors until she was about eighteen; then Hollis took her abroad, and as he has long been a globe-trotting 'scientist'—heaven save the mark!—the girl was dragged hither and yon

among byways and jungles, and only God knows what heathen holes. Hollis Lindsay has no more religion than the Java "pithecanthropus" he declares is the biological Adam, and which he accepts as his own ancestor."

"She is tenderly attached to her uncle, and, Mrs. Roscoe, I heard your husband say Hollis Lindsay ranked high as a scholar and scientist," ventured Mrs. Churchill.

"Yes, more's the pity. Do you know what he has the effrontery to assert as proof of his 'monism' sophistries?"

Mrs. Churchill bit her lip to restrain a laugh, and bent over her embroidery hoop.

"No; and bless my poor ignorant soul, you must excuse me if I confess that I don't much care; because we women never understand tiresome wrangles over fossil bugs, snakes and beasts that were kind and decent enough to crawl into the earth and become extinct before they had a chance to worry us. The agreeable fact that appeals to my sympathy is that Mr. Lindsay is an extraordinarily handsome man, a delightful talker, and most charming host."

"As head of a Christian household, you will at least admit that it is part of your duty to guard the sanctity of Bible records. Hollis Lindsay declares Cain took for his wife 'a highly developed female animal,' of course a beast; doubtless a monkey! Think of such a man as suitable to guide the training of a young woman! It is monstrous that atheism should prowl through the world, clothed in purple and fine linen, panoplied with wealth and fashionable influence—and sowing poison at every step. Heresy is just as contagious as smallpox—and vicious environment produces depravity."

"But, Mrs. Roscoe, luckily there are exceptions. Sometimes it happens that 'breed is stronger than pasture.' Romulus and Remus were baser than beasts if they had not dearly loved and toddled after their four-footed foster mother, yet no fable tells us they imbibed carnivorous tastes or pranced around as weir wolves. Last winter I met an English gentleman in Washington who told me something I should like to verify. He admired

Miss Lindsay immensely, but he censured severely her treatment of her grandmother in London. Mrs. Roscoe, do you know the circumstances?"

"Yes, I have the facts from the wife of our minister who presented Devota at Court. It appears that Lady Shirley's mother saw your friend on that occasion, and so startling was the girl's resemblance to her own lovely mother, that the dowager grandmother almost swooned at sight of her. Next day she wrote a most affectionate note imploring the young woman to come to her, and sent her carriage and maid to the hotel. The note was read and returned with this cruelly curt response: 'I am leaving London to-day. Permit me to say that the recognition withheld from my mother will never be accepted by her child.' Can you imagine the implacable, rancorous revenge that could so harshly reject overtures from an aged, white-haired grandmother? That girl has the wrought-iron will of Lady Shirley. Not long ago Horace Bingham told my son that when it was reported a young English nobleman—lacking money to repair his Elizabethan manor house—was trying to marry Miss Lindsay, Horace asked her when she would wear the ancestral diamonds his lordship offered her, and she replied icily: 'I do not buy my jewels from titled peddlers.' There! I hear the Bishop coughing and he needs his lozenges."

As the door closed behind Mrs. Roscoe, her hostess laughed softly and murmured:

"Dear old, pre-sanctified cat!"

An exceedingly pretty woman, dowered with a kind and sunny nature, Mrs. Churchill was a devotedly tender wife and mother, loyally attached to her church, and undeniably fond of her card club, opera box and gay house-parties—the latter an unusually attractive feature of summer sojourns at her villa, "The Oleanders."

Two hours later in the day, she sat before the oval mirror of her dressing-room, watching the nimble fingers of the maid pile her black hair into a towering pompadour, while Miss Lindsay leaned back in an easy chair close to the onyx toilet table.

Behind the blue crest of a distant peak the sun had disappeared, but the vivid light of afterglow streamed through the open window framed in riotous clusters of *réve d'or* roses; and beyond the eastern rock-bound shore line stretched a breeze-dimpled yellow sea, where sail boats swung like gigantic white butterflies over a wind-swept field of jonquils.

"Mrs. Churchill, where are the children? As I must leave after an early cup of coffee in the morning, I should like to see as much as possible of them this evening."

"All gone to a dog show in the village, and afterwards to a birthday tea at the Whiteheads'. I tried to buy off Rex, and offered sundry bribes, as he is rather too young yet; but he is such a persistent, wilful little sinner, and besides, the governess, seconded by Grace and Otto, stood security for his good behavior at the tea-party. There, Anice—my head is sufficiently like the tower of Babel! Get things ready for Miss Lindsay and shake out her dinner gown."

The maid fastened a diamond crescent in her mistress's hair and withdrew.

"Now, why must you hurry away on that first train?"

"Uncle Hollis wishes to read a paper on the opening day of a congress in Geneva, and any delay in our sailing day after to-morrow would cancel his engagement. So many matters remain unfinished I decided only at the last moment to run up for a night, and I very much doubt the wisdom of coming at all." She rose, closed the door of the dressing-room and resumed her seat.

"Miss Devota, how wonderfully well you look! Each year seems to add to your fresh loveliness and you appear younger than when I first saw you. Tell a needy friend how you manage to placate wrinkling, sallowing, greying time?"

"My health is perfect; my hair and teeth remain very loyal, and as I never insulted my complexion by any attempts to improve it, there seems no grievance for it to redress. With thanks for your friendly compliments let us dismiss my personality. Now, I owe you an explanation which your clock

warns me must be brief. I am sure you will not doubt my sincere desire to see you all before going abroad—even when I tell you that a very different motive compelled this visit. I came here especially to see Governor Armitage, who, I am told, is still your guest."

"Yes, he remains with us until Saturday; but you knew he would belong to this house-party, for it was after I sent you a revised list of friends who had accepted, that you suddenly declined joining us."

"At that time there existed no reason for any wish to meet him."

"Is it possible you have never seen him?"

"I have seen him several times; once or twice at the opera he sat quite near my box—but I have not even a bowing acquaintance with him."

"You have not been to the State Capitol?"

"Not during his incumbency. You know all the horrible conditions that surround our unfortunate friend Amy Clinton. The date of her husband's execution is only five days distant, and every effort to delay it or secure a pardon has failed. Poor Amy's baby is critically ill, and old Mrs. Clinton is so prostrated since her unsuccessful journey to the Governor, in her son's behalf, that neither she nor the wife can make a farewell visit to the prison. This morning an urgent message over the telephone called me to the Clinton home, where I found Amy frantic with grief and dread. She showed me a telegram from her husband: 'I have no hope. Chaplain says only one last chance; insists you send Devota Lindsay to Governor. She may save me. For God's sake get her help.' Can you imagine my painful perplexity? Amy could not give any reason for the chaplain's belief—she said he was a new man in the prison work and she could not recall his name. I tried to convince her it was utterly impossible that I could succeed where vastly more powerful influences had repeatedly failed; but in her frenzied condition she listened to no refusal. Knowing the hopelessness of the attempt, I resisted all appeals until she lifted her gasping baby close to my face, and almost screamed: 'Can you die in peace if you refuse to try to save my darling's father from the gallows? Will you see her in her coffin

disgraced because you would not lift a finger?' So I am here, on a fool's errand, confronting humiliating defeat."

Mrs. Churchill's eyes were full of tears, and leaning forward she softly stroked Devota's beautiful hands.

"Oh, my dear—what a frightful ordeal for you! I would encourage you if I dared, but while the Governor is bland as May sunshine he is simply inexorable when once he decides a matter. Feminine wiles and feminine wails make no more impression on him than summer dew on an iron-clad; and his cool, smiling way of shieing at every suggestion of marriage makes me absolutely sure that some pretty, vixenish kitten of a girl has clawed and frazzled his heart strings. How I wish I could help you! Poor Amy—it is heart-breaking to think of her awful fate."

"You can help me by manœuvring to secure an opportunity for a brief presentation of Amy's appeal."

Mrs. Churchill clasped and unclasped a jewelled serpent at her wrist, and her brows contracted.

"That could easily be accomplished by his taking you in to dinner, but unluckily I am handicapped by the Bishop's wife who arrived only this morning and has precedence. Oh, the eternal unfitness of ecclesiastical ingredients in secular pie!"

"I am very glad he escorts Mrs. Roscoe, because I could not possibly broach my distressing business in the presence of a chattering dinner party, and I must obtain a private interview."

"I have arranged to consign you during dinner, to the tender mercies of your avowed naval worshipper, Captain Winstead, who is spending the week with his mother, and comes to us for this evening. The Governor and his secretary have exclusive use of the library, and sometimes they are shut up there after dinner. We can watch his movements, and you must storm the citadel and expel Mr. Walton who lives at his typewriter."

On the paved driveway beneath the window sounded the beating of horses' hoofs, and a man's deep, mellow voice saying:

"I'm sorry I cannot yield to your wishes, and, my dear Churchill, you should remember that you once gave me an agate seal inscribed—'*J'y suis, j'y reste*.'"

Devota shivered and rose. Mrs. Churchill caught her hand.

"Those two have just returned from their daily horseback ride, when, secure from eavesdroppers, they discuss State politics. Did you hear, '*J'y suis, j'y reste*?' He lives that historic motto! My husband thinks him the noblest man on earth, despite the fact that as an attorney for various classes, Rexford prepares bills that the Governor sometimes fights stubbornly. A great many years ago, before his political career began, when he was almost obscure, a horrid scandal was hatched against Royal Armitage, who it seems held some professional secret, and rather than betray the real sinner he kept silence, and endured disgrace until an unexpected death-bed confession fully cleared his character; and since then the people in that part of the State have never been able to do enough for him. This is his second term. Now run away and get ready for battle. You must look your best tonight and have barely time to dress. By the by, speaking of deadly battles, wait a minute. Do you mind telling me why and how you dared to cross swords with my august and formidable cousin, who has half the alphabet in capital letters dangling like a kite's ragged tail after her name, Professor Hannah Barbara Brown?"



"'J'y suis, j'y reste.' He lives that historic motto!"

Miss Lindsay had reached the door, but paused and looked back over her shoulder:

"As president of her college she wished me to endow a chair of Philology and Etymology; and to convince me of the absolute necessity of 'broader lines' of culture in education of girls, she commented on the surprising ignorance of some women who do not know that the abusive word 'virago' was a valued title of intellectual honor in the fifteenth century, and that its twin horror 'termagant' originally designated a deity. In very respectful terms I declined her scheme, on the ground that the new dictatorship of big wigs in orthography—the prophets of revised language—would soon leave no etymon for students to hunt down; 'fonetik refawm' would end that scholarly game. I tried in vain to propitiate her by offering to provide a chair of 'Household Economics, Sanitation and Decoration'; but she deluged me with vitriolic sarcasm, and in closing the correspondence, I ventured to quote a crusty old critic: 'If the stockings are blue, the petticoat must be long.'"

CHAPTER II

WHEN a master painter, crowned with international renown, had unsuccessfully attempted a portrait of Devota Lindsay, he turned the canvas head down with face to the wall, and vented his irrepressible chagrin.

"Miss Lindsay will pardon me for declining to waste any longer her patience, and my time in finishing a picture that can be merely a pretty mask. Despite its classic lines and exquisite coloring the locked face you show me, no more reflects your individual mentality and emotional potentialities than some flawless alabaster mask. If you will permit a frank analysis, I should say your habitual expression is that of complete, well-trained repose, impervious to shocks; and even your eyes—if windows of your soul—are deftly curtained with a radiant mist defying scrutiny. If you will excuse the *argot* of your own countrymen, should the day ever arrive when you 'let yourself go,' may I be there to paint the real woman! I shall destroy this baffling work, retaining only the hand and arm, which you must grant me as some solace for defeat. The day is not distant when you will recognize your wrist and fingers in my 'Egeria' signalling Numa."

Mature womanhood very rarely preserves the fresh and dainty tints peculiar to girlish youth, and to-night as Miss Lindsay walked slowly down the stairs, one might well have doubted the number of years that had rolled so tenderly, leaving no credentials to line their passage.

Her dinner dress of heliotrope chiffon was cut square at the neck, garnished with filmy Mechlin, and around her throat she wore a broad collar composed of three rows of large fire opals, set in delicate Venetian network of gold wire, from the center of which hung a Maltese cross of diamonds. In her silk girdle was fastened a bunch of long-stemmed double white violets. The slender handle of her circular fan was studded with opals, and the disk glowed with its iridescent border of peacock feathers.

Avoiding the main door of the long parlor whence came the hum and chatter of many voices, she paused in an adjoining music-room, where a

lace-curtained arch-way permitted a view of the assembled guests. Above the arch an electric light glared over her face and figure, enhancing the golden shimmer of her hair, and the starry brilliance of the long-lashed velvety hazel eyes. Cautiously lifting the outside edge of the drapery, she looked at the various groups, and her gaze fastened on one where the hostess, the Bishop's wife, and Mrs. Van Allen—a gay young widow—clustered around the tall, athletic form of Governor Royal Armitage.

At forty-three years of age he looked older; his massive, finely modelled head and very regular features justified the generally conceded epithet "handsome"; yet in repose his face was cold, and the sombre, dark grey eyes rarely changed their brooding, *en garde* expression, even when the well-cut lips parted in a smile that disclosed a superb set of teeth.

Devota studied the countenance for a moment, and crushed back a half-uttered moan, while a tremor shook her; then lifted the lace curtain and entered the drawing-room.

"Ah, Miss Lindsay, how welcome you are after we had abandoned all hope of this pleasure! Following my example, our entire household wept over your failure to come sooner. My wife tells me you know everybody here except the Governor, and since you are strangers, I am glad it is my privilege to make you both my debtor by an introduction."

Mr. Churchill drew her hand to his arm, and she bowed to right and left to guests, as the host led her forward. The Governor was bending over an engraving in Mrs. Roscoe's hand, but suddenly drew himself erect and threw his head back proudly.

"Gov' Armitage, I am exceedingly glad to present you to Miss Lindsay, our family mascot."

Both bowed impressively, and a deep, well-trained, manly voice answered:

"I assure you it is a pleasant surprise to find myself numbered among those so fortunate as to claim Miss Lindsay's acquaintance."

The cold grey eyes looked steadily at Devota, but his face evinced no more pleasure than the granite gargoyle on the roof.

"It is my privilege to remember that a great many years ago, when quite young, I met your Excellency, but certainly I have no right to expect that after the long lapse of time any recognition could occur."

"You are very gracious to recall a casual incident of 'auld lang syne' that I dared not flatter myself you cared to remember; but that you have not entirely forgotten it is as unexpected as it is complimentary."

The eyes of each probed deep, but neither flinched, and as Mrs. Churchill arched her brows and pinched her husband's arm, Devota smiled, and turning away held out her hand to Bishop Roscoe.

"My dear Miss Lindsay, I am glad to have an opportunity to wish you Godspeed on the long tour you contemplate. When do you sail?"

"At dawn, day after to-morrow."

Mrs. Churchill's fan tapped the Bishop's wrist.

"It is your duty to lecture her soundly on her descent into the Bohemian ranks of roaming 'bachelor girls,' who, running after tinsel kites they call 'careers,' turn their backs on all home duties, forsake every form of genuine feminine domesticity, cast family ties to the winds and herd in tenements, boat-houses and mountain camps. Professional female tramps!"

"I am very sure he will agree with me in thinking that Mrs. Churchill is cruel in smothering her innocent friend under an avalanche of opprobrious epithets. My sole 'family tie' happens to be Uncle Hollis, and I hold fast to him, though to do so necessitates surrender of 'home duties' in order to keep under his protecting wing. Not at all a 'bachelor girl' if you please; but having recently bidden a reluctant and tearful adieu to my thirty-first birthday, I have deliberately selected a very different and more subdued type of serene old-maidhood—the effete and much-derided spinster of less degenerate days, a hundred years ago—who studied Mrs. Chapone and Mrs. Opie, spent all tender affections on pugs, canaries and knitting needles,

sternly confined hilarity within the prim boundary of the minuet, and revered chaperons almost as devoutly as the 'Apostles' Creed.'"

The announcement of dinner rearranged the groups, and escorted by Captain Winstead, Devota was seated at an unusually large circular table where sixteen persons found ample room. There were no candelabra so suggestive of childish "peek-a-boo" or the tinsel frippery of Christmas trees, and the colored tapers of juvenile birthday fêtes; but from the ceiling a flood of light fell from clustered electric globes upon glass, silver and the snowy damask cloth, wherein woven wreathes of orchids seemed to stand out as though embroidered in satin tissues. Neither tall vase nor *bonbonnière* impeded view of the entire table, and in the center a long, low silver shell was filled with stephanotis and amber-edged Farleyense fronds, while in front of each guest lay a slender spray of daphne starred with bloom.

Mrs. Churchill sat between the Governor, assigned to Mrs. Roscoe, and the Bishop, whose next neighbor was the vivacious young widow Mrs. Van Allen, a recent donor to his favorite church of an old and very costly silver sacrament service that Cellini was said to have embossed and engraved.

Gradually the overture of general chatter diminished, and as conversation became dialogues between individual couples, Devota found it difficult to fix her attention upon Captain Winstead's remarks, to which her replies were brief and perfunctory. Notwithstanding her efforts to resist the impulse, her eyes turned often to the smiling face of the man immediately opposite her, and she was aware that he studiously avoided looking at her.

He was an amused listener during the progress of a spirited skirmish between the hostess and Mrs. Roscoe on the subject of "bridge," which the latter denounced as "social gambling leprosy," that was swiftly bringing the morals of Monte Carlo into family circles, and all phases of club life. Apparently claiming victory in the argument, the Bishop's aggressive wife next opened fire on the Governor, because of his failure to approve a bill framed to secure a large appropriation for establishment of an additional State reformatory.

"It is hard to believe that you, sir, could turn a deaf ear to the cry for help that calls to you from the criminal outcast children, whose salvation should be your dearest aim. An enemy of reformatories at the head of our State government is surely a mournful and disheartening spectacle."

"Really, my dear madam, your indictment is so severe, you force me to plead 'not guilty.' For a thorough, efficacious reformatory system I am an earnest advocate, but my convictions relative to desirable methods and conditions may not meet your entire approval. When I was vested with necessary authority I made an exhaustive inspection of all State penal and reform institutions, and found an ample reformatory centrally located and well equipped along educational and industrial lines. Regarding it as a vital question, I have very carefully studied reports of various farms, schools, etc., from the days of Pourtalès' tragic failure, and I trust you will pardon me if I frankly confess that statistics of juvenile criminology do not encourage me to increase the number of State reformatories. The urgent need of reform is too appalling to be ignored, but the facts at my command do not warrant a belief that herding youthful offenders at State compounds or similar institutions accomplishes the desired result. A profound and noble student of mankind admonishes us: 'Children have more need of models than of critics.' Of course incurable moral degenerates must be denied opportunity to prey upon their fellow-creatures, and for this sad class, provision for seclusion is sufficient; but the 'cry of the children' now ringing through our land is for parental guardianship—for the return of domestic control. Madam, the best, the divinely appointed reformatories are preventive as well as corrective, and God commissioned one in every parent to whom He intrusted an immortal soul for mental and moral training. No outflow rises higher than its source; as are the family standards, usage and influence, such inevitably must be the trend of the nation—the vast aggregation of those practically orphaned as regards parental authority and guardianship. We are all glad to remember distinguished exceptions to prevailing conditions, but how little genuine home life remains to leaven the social masses? Do fathers and mothers fully realize that they have abdicated their throne on the hearthstone, now usurped by servants and tutors, and that some day the souls of their neglected sons and daughters will be lost through their failure to exert proper care, and watchful guardianship? As I walk the streets of our cities the terrible truth becomes

evident that parents have gone out after strange club-gods, and the pavements are the real nurseries of our boys and girls. America's most urgent national need is the revival of home life."

"In order to promote the system of reform you advocate in opposition to Mrs. Roscoe's darling scheme, has it never occurred to you that it might be wise to establish in the Executive Mansion a model household, for the imitation of our State where other experimental stations of various character seem to be educational?" asked Mrs. Van Allen.

The Governor bowed and laughed as he replied:

"Your rosy suggestion is so alluring that my utter inability to adopt it fills me with poignant regret. Instead of spending the past ten or twelve years in trying to hypnotize some sweet woman into the belief that I was worthy of her trust, I have unwisely devoted my entire energies to other and far less charming pursuits, until confirmed old bachelorship now absolutely bars the possibility of any change. Rest assured no sour grapes mar my vineyard, and the hopelessly unattainable is always invested with additional value. Knowing my defrauded bachelorhood seems inevitably unalterable—are you not needlessly cruel in dangling so tempting a pink sugar-plum beyond my grasp?"

"My dear child, don't soil your pretty fingers by stoning the prophets!" said the Bishop, patting the bare, plump arm of his near neighbor. "Armitage is right. He has diagnosed the social sarcoma that threatens our national vitals. Instead of purifying and exalting the moral code, the press, the politicians, even some of the clergy are ranting and howling Jeremiads over 'cannibal trusts,' and corrupt corporate and individual fortunes, and lashing Congress, State legislatures and even the Judiciary to institute a crusade of covetousness, to rob the rich in order that labor may hold its hands in idleness and batten on plunder. An American twentieth-century recrudescence of *Jacquerie* freebooters! Our youth must be trained in early years by parental precept and example to understand and to hold sacred the legal line of boundary between *meum et tuum*—and to obey God's law, 'Thou shalt not covet—anything that is thy neighbor's'; but will fathers and mothers perform a duty that may save this country from vicious wholesale spoliation?"

"Good heavens—my Right Reverend friend!" exclaimed Mrs. Churchill, "Have you no pity for fathers who must fly kites in stock exchange, and play poker at clubs, and bet on ball games? And where, oh, where, shall mothers find time for 'bridge' and golf, vaudeville and bargain counters?"

Bishop Roscoe shook a sprig of daphne at her smiling face, and looked gravely into her twinkling eyes.

"If, as a privileged guest, I have dared to violate conventional canons that govern 'table talk,' by obtruding ethics which certainly do not contribute curry, horse-radish and Tabasco to the conversational menu, I claim in extenuation of prandial heresy, the obvious fact that such charming people as surround me to-day are not always in their pews, to receive and assimilate the homiletic dose distributed once a week at the ecclesiastical dispensary. Please do not vote me a bore if——"

"Just one moment of parenthesis, Bishop," interrupted Mr. Churchill. "Possess your soul in patience. This wild craze of greedy, omnivorous, grudging 'Have Nots' is no new phase of that variety of original sin that claims something for nothing. Don't forget how long it has been since Thurlow's snarl: 'Corporations have neither a soul to lose, nor a body to kick.' Demagogues are persuading the disgruntled of all classes that they are now kicking the vile, corrupt body of corporations, but an inevitable reaction will be forced when it becomes evident that the kicks are aimed at the cornerstone of civic equity—the universal and inalienable right of every human being to the fruit of his labor, mental or manual—whether that fruit be dividends of the capitalists, or daily wages of miners, blacksmiths and ploughmen. This popular creed of wholesale confiscation which teaches 'Love thy neighbor's goods more than thy soul,' has reached its ultimatum in arranging even pre-natal conditions whereby all children shall be born equal—not mentally, not morally; oh, no! simply financially, in consequence of abolishing the right of unlimited inheritance. Don't worry. The wave is nearing its crest, and when it ebbs it will suck out as wreckage the political charlatans that hope to float into office."

Captain Winstead's handsome black eyes sparkled mischievously.

"Party politics are as unsuitable on this occasion as would be a shooting jacket worn at a Court function; but, Mrs. Churchill, I am sure you will forgive me if I dare ask one question: Is not your husband a Democrat?"

"Captain, your state of serene single blessedness is evidently the result of fright engendered by cartoon fables depicting the abject subjugation of husbands, by emancipated wives. Dismiss that termagant scarecrow, for behold! my undaunted, conjugal Czar speaks for himself."

"Am I a Democrat? You very well know I have always been one, and I am still clinging with grim, dogged fealty to the few precious fragments of genuinely orthodox democracy, that survive the blows of disloyal demagogic platform carpenters who raided recent national conventions. Americans of all parties need to remember that their first duty as citizens is allegiance to individual convictions of the morality of public policies, instead of the existing mischievous custom of servile submission to the ukase of committee and convention dictators. The time-honored party name, Democracy, is disgraced by the effort to make it mother a mongrel brood of socialists, whose wild antics and schemes of universal confiscation would cause Thomas Jefferson to gasp. If he could only leave his grave long enough to make one speech, he would stamp out the clubs profaning his revered name, and scourge the 'populistic' leaders—now strutting under the standard of his stolen mantle—as Christ emptied the polluted temple. The spectacle of the so-called 'Democracy' of to-day would so sicken his wise, honest, sturdy soul that, I verily believe, a spiritual somersault would land him close to Metternich's axiom: '*All for, not through, the people.*' The constitutional basic, and virile principles of my dear old Party will weather this dusty whirlwind of popular delusion, stirred up by ravening socialist wolves, cloaked in Jeffersonian fleeces; and primitive, genuine, untainted democracy must come to its own once more."

"Yours is a rosy view, Mr. Churchill, but who will undo the mischief accomplished by American demagogues who are spurring the people into the pitch and sulphur pit of rank, Godless communism? What remedy will avail? Not schools, not colleges, not universities where athletics, 'higher criticism' and 'phonetic spelling' absorb attention to the exclusion of Christian ethics—now thrown aside as obsolete as the Ptolemaic system of astronomy. The decadent tendency of our people to habitually seek

excitement and diversion at public places of amusement, has reduced the once attractive home to a mere economic residential combination of refectory, dormitory and station for laundry delivery. Interest in the outside world usurps domestic attachments, loosens family ties and that interdependence of the members of the hearthstone circle, that once made genuine, old-fashioned home life so potent a factor in developing well-balanced, wholesome character, both individual and national. It seems to me the dear old 'Home, Sweet Home' of other days is now sadly transformed into the nest of *ennui* and hysterical unrest, whence all must flee who determine to 'have a good time'——"

The Bishop's homily was cut short by a sharp cry in the hall, the patter of running steps,—and into the dining-room darted a red-haired child of six years, followed by a panting nurse, flushed and trembling, who held in one hand a discarded small slipper and silk sock.

Tiptoeing on his bare foot, the boy glanced swiftly around the circle, and sped to the chair where Miss Lindsay sat. With a gurgling laugh he threw himself against her, and pushing her chair slightly away from the table, she put one arm around and drew him close to her.

"Rex, go back with Bertha," said his mother, beckoning to the discomfited nurse who approached the table. Two little arms clung desperately, and the large blue eyes brimmed with tears, while a sweet, childish voice pleaded quaveringly:

"Oh, mamma, Miss 'Vota runs away before breakfast, and I must stay with her! I'm so afraid of that awful sea—and Jonah's whale and the Devil's fish—and slimy, pollywog, wriggling things that may catch her—and please, mamma darling, you know she's just my very onliest sweetheart!"

Devota leaned forward, and with the assistance of Captain Winstead lifted the boy to her lap.

"Mrs. Churchill, please let me keep him. He comes in with the other sweets, and I beg for him as my one special *bonbon*. Be gracious to me, will you not? I stand sponsor for his being 'seen and not heard.'"

Mrs. Churchill flushed, but instantly the Bishop raised his hand.

"Governor, veto that maternal sentence of banishment."

Governor Armitage smiled.

"This is the first time I have ever regretted the limitations of my veto prerogative, but in recognition of Rex's indubitable taste in selection of his 'onliest sweetheart,' I ask the privilege of signing Miss Lindsay's petition for retention of her loyal lover."

A tender light shone in his eloquent grey eyes, but they were fixed on the pretty boy's ruddy locks, rather than the golden head bending against his long curls.

Mrs. Churchill motioned to the nurse to withdraw, and her lips twitched as she replied:

"Can your Excellency, and your Reverence, magnanimously ignore the vivid object lesson, so unexpectedly illustrative of your lectures on neglected parental discipline? My young rebel would certainly prefer your inconsistent leniency to my exacting domestic code. In honor of your pet theory—that, like other distinguished doctrinaires, you both decline to practise—I must ask you all to drink a toast once offered by a cynical wit when dining at a table, which was similarly invaded by marauders from the host's nursery. I propose to drink to 'King Herod.'"

She lifted her wine glass, but each guest laid a hand over theirs, and in the midst of a chorus of protests the butler approached the Governor and held out a salver on which lay two telegrams.

"If you please, sir, Mr. Walton says he thinks, sir, you must see these at once."

Pushing aside his untasted pink ice, Governor Armitage took the yellow envelopes, rose, bowed to his hostess, and said:

"Pardon my unceremonious desertion."

As he walked away, Mr. Churchill called to him:

"Come back to us for coffee and cigars. We shall wait for you."

He shook his head.

"Thank you; no. I will join you later."

As the ladies withdrew to the drawing-room, Mrs. Churchill paused at the foot of the stairway, where the sullen nurse lingered.

"Go on, Bertha, and get Rex's bath ready. Miss Lindsay will take him with her, as she wishes to see Grace and Otto."

Turning to Devota, whose arm encircled the boy's shoulder, she looked steadily at both.

"Mrs. Churchill, you must do me the favor to set my fears at rest about Rex. Promise me he shall have no reason to regret that he proved himself my brave and loyal lover. Recollect I encouraged his rebellion."

The mother twined over one finger a red silk curl, and shook her free hand warningly.

"You both deserve a sound, old-fashioned, hearty spanking, and I make no rash promises; but as the pair of you seem equally culpable, I might be embarrassed in administering justice. Good night, Rex. No, naughty boys cannot kiss their mothers. Don't forget your prayers, you need them. Now, Miss Devota, do not let my pretty imps, my tawny cub triad keep you too long. Perhaps Providence is aiding your mission by calling the Governor to the library. Better watch his door from the side hall. Good luck to you, dear, when you beard the lion!"



CHAPTER III

A promise having been exacted that the "triad" should accompany her to the early railway train, Devota went swiftly down a rear staircase to the side corridor running in front of the library. The door was open, and from the threshold she looked in. The room was well lighted; the typewriting machine at rest, the desk covered with official documents, and from a file at one side a sheaf of telegrams rustled as the air surged through the window. The sole occupant of the apartment was the secretary, Mr. Walton, seated before a tray-laden table. He had dined, and was dallying with a gilded liqueur glass in which iced Chartreuse sparkled like splintered emeralds.

Doubtless Governor Armitage was the centre of attraction in the drawing-room, and the auspicious moment had passed beyond recall. A premonition of defeat impaired her self-control, and shrinking from observation, Devota walked down the corridor to an arched door, whence a flight of steps led to the flower garden.

Avoiding the stone terrace in front, where an electric globe shone, she turned into a winding path bordered on both sides with wheeled boxes filled with tall pink oleanders in profuse bloom. A mid-summer full moon lighted every corner of the sloping lawn, bringing into velvety relief the shadow vignettes traced by leaf and vine across the smoothly clipped grass, and adding a silvery lustre to beds of lilies that lifted their white lips to drink from Hersé's cool, dripping palms.

Among Mr. Churchill's valued curios he numbered a quaint sun dial of black lava, fashioned ages ago in an Ægean isle riven by volcanic throes.

The gnomon had been destroyed, and erosion by time and storm partly erased the Greek characters on the base, but doubtless some pagan Le Nôtre once deemed it an ornamental altar to the great sun god. A prosaic new gardener at "The Oleanders" found it more useful as a mere pedestal, whereon he had placed a terra cotta vase filled with luxuriant nasturtiums that wove over the whole a fringe of scarlet and orange.

Devota stood beside the dial, and silently wrestled with emotions habitually held in bondage by an iron will. The night had grown very still; only a faint breath of air now and then pilfered and strewed the attar of oleanders and lilies, and from rock-ribbed shore rose the solemn, monotonous ocean hymn, the immemorial recessional chanted by shattered waves.

An overwhelming sorrow seized and shook the lonely woman standing by the dial. She threw up her arms, as if in mute appeal to some tragic fate, and her fingers gripped and wrung each other; then the clenched hands fell upon the crown and garlands of nasturtiums, and she closed her eyes to shut out torturing retrospective visions.



***An overwhelming sorrow seized and shook the lonely
woman by the dial***

The pungent smoke of a cigar suddenly arrested her attention, and over the sward slowly walked the Governor. As he passed a drooping deodar he

disappeared, but a moment later a great cluster of rose oleander smote his bared black head, and he stood inhaling its fragrance. His upturned face showed unusual pallor, and an expression of profound sadness that failed to soften its dominant sombre sternness. An audible sigh escaped him, and throwing away his cigar he moved forward toward the terrace.

The sight of the graceful figure immediately in front of him was evidently an unpleasant surprise, and for an instant he wavered, tempted to turn aside, then advanced. When quite near he bowed, and without pausing, would have passed her, but she stepped at once to meet him.

Her voice was steady, though strained, and her words crisp and measured:

"If Governor Armitage can grant me a few moments in which to lay before him a matter of importance to others, I shall be glad for reasons that he will readily understand are not personal."

"If it is Miss Lindsay's wish, my time and services are certainly at her command."

The moon shone full on both faces, and each had suddenly contracted and hardened. The Governor threw back his head and folded his arms behind him; Devota's right hand clutched the edge of the dial, and with her left she drew from beneath the violets in her girdle a slip of telegram paper.

"Having twice refused to become a member of Mrs. Churchill's house-party for this week, I was much annoyed, perplexed and pained when most unexpectedly I found myself reluctantly obliged to come here for a few hours. In the midst of preparations for my long absence, I was summoned to a grief-stricken family whose pitiable condition of abject misery and terror no verbal picture can exaggerate. My old friend, Mrs. Ronald Clinton, is prostrated by sickness and sorrow, and unable to leave the room where her baby girl is critically ill, probably dying; while in the same house the aged mother-in-law raving with brain fever calls for the son who is sentenced to be hung next week. Neither his wife nor his mother can visit the distant prison to say good-bye to the doomed man; In her despair, Amy Clinton, having exhausted all other means of saving her husband, has seized the

fatuous belief that my prayer might possibly have some effect. It was in vain that I refused to come, assuring her that I was the very last person to send as envoy to your Excellency, who had declined her own appeal when she knelt at your feet. She persisted in her frantic pleadings because of an inexplicable telegram from Ronald Clinton, telling her the prison chaplain was sure I could secure help for him. On what grounds he based this preposterous advice Amy was absolutely ignorant, as neither of us can learn even the name of the chaplain. Knowing the futility of my mission, I yielded at last to her frenzied prayers—I drank the cup of bitter humiliation—and as my last sacrifice on the altar of friendship for a broken-hearted wife and mother, I surrendered my self-respect, my womanly pride. Read this message to the wife, and then I feel assured you will realize what a terrible ordeal has finally forced me into your presence."

She held the telegram toward him, and taking the paper he read it carefully more than once. Refolding it, he bowed and returned it, but the locked lips yielded no comment. She tore the slip into shreds, and her hands trembled as she asked:

"Can your Excellency imagine why this mournful and mortifying task was laid on my unwilling shoulders, by the chaplain who is an utter stranger?"

He looked intently into her beautiful eyes, and his voice lowered to a key of icy sternness.

"If Miss Lindsay desires the name of the chaplain, I can gratify her wish. Peyton Knox has recently officiated in the prison chapel."

A hot wave crimsoned her cheeks, and she shrank as if from a blow, but as the color ebbed, she drew herself proudly to her full height.

"As any other total stranger claiming every citizen's right of petition, I reluctantly intrude upon your leisure, and I appeal to you as a man, as a gentleman, as the highest official of my State, to grant some mercy to a doomed criminal. For humanity's sake—oh, Governor Armitage, for the sake of a ruined and helpless family, I ask—I beg—that you will pardon

Ronald Clinton and save two women from insanity! Be merciful; oh, be merciful, as every Governor can be if he so wills."

He watched her steadily, and once he drew a long, deep breath as if sorely oppressed; but her anxiously searching gaze discovered no relaxation. She suddenly leaned forward, and her exquisitely curved lips quivered:

"You will not deny my prayer! You will pardon Ronald?"

Slowly he shook his head.

"Miss Lindsay, I shall never pardon him. At all costs I must be absolutely just."

"You will not spare his life? when your office empowers you to set him free? You cruelly elect to order his wife widowed, and his babes disgraced!"

"Should I forget the widow and fatherless little ones of Norman Hewitt whom Ronald Clinton deliberately and brutally murdered? The wrongs of the dead are too often buried with him, and sickly sympathy—posing as philanthropic Christian clemency—is lavished on branded Cains set free to defy human and divine law, and repeat crimes that should have forfeited their blackened lives."

"Your Excellency's standard of justice is more righteous than that of Abel's God, Who instead of slaying his murderer granted him long life in which to purify his guilty soul and mend his ways!"

"Disclaiming any approach to irreverence, permit me to remind you that the experiment of pardon was not repeated; and the severest penal code ever compiled came directly from the Divine lawgiver, whose chosen people demanded 'a life for a life.'"

"Hanging poor Amy's husband could not compensate Mrs. Hewitt for the loss of hers. The exaction of blood tax is a legal survival of savagery. Justice is not the sole divine attribute—mercy is coordinate. Try to remember that Talmudic prayer of Jehovah: 'Be it my will that my mercy overpower my justice!' As Governor, the issue of life or death lies in the

hollow of your hand, and for the last time I beg of you not to listen to the barbarous prompting of a cruel revenge. Think of the awful responsibility of hurling an unprepared soul into eternity. Think of the blessed relief that only you can give to tortured, despairing human hearts who can look to no one but you for succor."

"I have never pardoned a convicted criminal, and I never will. I cannot conscientiously exercise the 'gubernatorial prerogative' of riding roughshod over the mature, deliberate verdict of twelve sane, dispassionate men empowered to sift all testimony, and carefully guard for their guidance only indubitable evidence. The sanctity of jury verdicts has been so frequently violated by reckless use of pardoning power, that the value of blood-bought jury trial has dwindled into a mere mockery, an arena for spectacular professional jugglers. Ample legal machinery has long been provided for the rehearing and unbiased review of all criminal cases, whenever new witnesses or new and vital facts cast any doubt on the wisdom or justice of judge and jury. Courts of appeal and review should have power to correct wrongs that juries sometimes inflict upon the innocent, but the preposterous assumption of infallible prescience and 'altruistic clemency' by a President or a Governor is an ideal aspiration that I do not permit myself to indulge. This popular form of annulling jury verdicts is a fatal blow at the very foundation of penal jurisprudence; and the exasperating quibbles of subtle attorneys—the systematically delayed execution of verdicts and the too frequent veto of death sentences—all contribute to the deplorable increase of lynching. Pardon my taxing your patience for this enumeration of my reasons for preferring to leave justice to competent and unprejudiced courts."

She threw out one hand with a repellent gesture.

"Capital punishment is merely revengeful, judicial murder, utterly futile as a corrective method. Taking a second human life avails nothing as requital for the destruction of the first victim. It is indefensible cruelty in an age pluming itself on higher humanitarian standards."

"Miss Lindsay, legal punitive statutes are not designed as retaliatory sacrifices to revenge, but as deterrents to crime, simply because dread of speedy retribution is the most powerful motive that can restrain the criminal

masses. Maudlin sentimentality that just now inveighs against execution of judicial penal decrees, is a danger signal that points to public degeneracy in a people who regard mawkish sympathy with culprits as an advanced phase of civilization; and to whom the condonation of crime is more humanitarian than its extirpation."

His slowly uttered words rang with the measured precision of a sculptor's chisel upon stone, and the inquisitorial eyes, no longer sombre, now glowed as they looked steadily into hers. For an instant a spasm of keen pain shivered the composure of her haughty face, and her voice rose into a bitter, half-strangled cry:

"No mercy from you! I might as well pray to that growling sea yonder, watching hungrily for the next drowning wretch. I knew mine was a fool's errand, yet pity conquered repugnance, and it seemed so incredible, so monstrous that any man could coolly point to the gallows as sole answer to the heart-rending petition of an almost frantic family."

He pressed a hand over his brow, pushed back the thick, close-cut black hair, and after a moment he answered in an altered tone of profound and tender regret:

"My fellow monster, the sea, is spared after-pangs that are my portion. Do you imagine that any argument could avail to change my convictions of official duty, when in a fiery ordeal I felt compelled to deny the wailing wife who brought her pretty little ones to cry in their father's behalf? Try to realize what must have been the feelings of a man not wholly petrified, when he lifted from his office floor the kneeling form of an aged, white-haired woman who could only gasp between sobs: 'As you hope for mercy when your naked soul fronts God on His judgment seat, spare my son's life! Remember the mother who cradled you in her arms—for her sake, for God's sake, be merciful to me—save my boy from the gallows.' Miss Lindsay, the terrible curse is that the wages of sin are paid too often to the helpless innocent. I could not pardon Ronald Clinton, whose crime was deliberately planned murder, but learning of illness in his family, I sent a telegram at four o'clock to-day staying the execution of his sentence until restoration to health permits his mother and wife to spend a day with him in prison.

Sometimes when I long for rest, the vision of those heart-broken women and two lovely children clinging to my knees, robs me of sleep."

"You spared him only long enough to say good-bye to those who, if possible, would die to save him! Is that deemed a mercy—or refinement of cruelty? Your telegram was sent at four o'clock? If news of the reprieve had only arrived before I left my house, this needless journey would have been averted; I should have been spared this keen humiliation on the eve of quitting a country I shall probably see no more."

From a silvered sea rose the metrical rippling of waves crooning a "*berceuse*" to drowsy lands cradled by foam-laced surf. For a moment silence had followed the woman's words, and in that brief pause Governor Armitage's luminous, watchful eyes noted a swift and subtle change. The face whitened, hardened to its usual rigid coldness; all trace of emotion vanished as utterly as the light from an extinguished lamp in some lovely transparent globe, and the strained expression of her unflinching eyes gave place to one of baffling, inflexible quietude; the habitual mask temporarily loosened, was readjusted.

When she spoke her clear, even tone showed no hint of cadence that had sunk it to passionate protest.

"In ending an interview intolerably repugnant to my womanly instincts, permit me to say that, although conspicuously futile as regards the sole object of this visit to Mrs. Churchill, I shall avail myself of the unexpected opportunity to offer you an apology for the grievous wrong of which I was once guilty. Simple justice demands this admission, and in addition I frankly express my pleasure in finding that my judgment was wholly erroneous. I tender sincere congratulations that your vindication was so triumphant; and I bid your Excellency good-night."

As she turned away he threw out a detaining hand.

"Understanding fully what such gracious words cost you, I value them correspondingly, and hope my thanks will be as acceptable as your apology. Will you pardon me if I venture to ask, if you had known that Peyton Knox

was the chaplain who dictated the prison telegram, would your sympathy for poor Clinton's family have sufficed to bring you into my presence?"

"Certainly not."

"You had regained sufficient faith in my integrity to believe that in matters involving conscientious scruples, I should prove callous even to Miss Lindsay's appeals?"

The starry glint in his eyes brightened, and a bitter smile curled his lips. She met his gaze with cool, proud calmness.

"The number of mangled offerings Governor Armitage has long laid before the pet fetich he labels 'Duty,' allows no margin for any one to doubt that the sacrificial axe needs no whetting for the next victim on the official scaffold. That I was predestined to defeat I knew as well before I came as now, but the sanctity of one's motive can sometimes nerve one to drain even a loathsome draught."

Only a few feet of sward separated them, and while she stood apparently as devoid of emotion as the sun dial, he knew from the quivering of the diamonds in the cross, and the fiery flashes of the opals rising and falling at her throat that her heart throbbed fiercely.

"Have you chanced to remember the day of the month, and that it is also the thirteenth annual anniversary?"

"Yes, the thirteenth. Barring all superstition, which of course you scout, how could this disagreeable meeting have failed to be unlucky? It is true I have passed my springtime, but decrepitude has not yet attacked my memory, and it warns me now that I have unduly trespassed on your Excellency's time."

She bowed, stooped to gather up the train of heliotrope chiffon, and moved in the direction of the house, but he stepped before her.

"One moment, Miss Lindsay. May I ask why you refused to marry Hoyte Kingdon?"

"Refused to marry him? Can you think it possible any sane woman could be so hopelessly fatuous as to decline an offer of his hand, of his exalted position? How incredible the suggestion that an opportunity of marriage so brilliant would not have been seized with avidity, by even the most ambitious of husband hunters!"

"Hoyte told me of his persistent but unsuccessful effort to win your affection."

A defiant gleam leaped into her eyes as she stood at bay, and in the brilliant moonlight the coil of opals around her lovely neck seemed a writhing serpent of flame.

"Though women are satirized as unworthy custodians of their suitor's confidential proposals, it appears that manly friends have no compunction in violating the seal of secrecy. Why did I fail to marry Hoyte Kingdon? Since your Excellency indulges such sympathetic solicitude in his behalf, it will comfort you to know that I sometimes share your wonder at my lack of wisdom in ignoring a prize coveted by many others. I respected Hoyte, admired his handsome personality, his very brilliant talent, his diplomatic career; and certainly the position he occupied as ambassador at Court was alluring to my ambition and tempting in various aspects. I liked him immensely, and I wished very much to love him, but despite my heroic efforts I could not find him essential to my happiness. Is it not unfortunate that one cannot successfully whistle love to come, as one signals to a terrier or a roaming canary? Since the days of poor Psyche elusive love plays hide-and-seek in devious and baffling ways. Hoyte now has a beautiful and charming wife who makes him supremely happy and graces the conspicuous diplomatic circle in which he has attained the highest honors. We expect to spend Christmas with Hoyte and his wife after our return from Bangkok. I am sure his guardian angel was alert when he barred my heart against Ambassador Kingdon's magnetism."

Leaning forward, the Governor's eyes seemed to search her soul, and his voice thrilled like a viol's chord.

"Did no tender, regretful memory hold fast the lock that refused to yield?"

For an instant she put her hand upon the jewelled collar to loosen some stricture that caught her throat, but her tone was firm, her eyes fixed on his.

"Governor Armitage ought to know that women are not retrospective, that like other butterflies the present suffices and we flee from 'regret' as the real vampire that robs us of bloom and is so detrimental to curves of beauty. We shrink from dead years—spectre-peopled—as one shuns midnight prowls in a cemetery where graves may suddenly yawn over fleshless horrors."

"Across the chasm of thirteen years you still prefer to make no signal of reconciliation?"

"Scourged by a sense of justice quite as keen as your own, I have apologized for a great wrong you once suffered at my hands. I owed you that acknowledgment, and now the debt is cancelled fully, and the ghost of that one regret is eternally at rest since I have the gratifying assurance that the harsh misjudgment of an impulsive girl had no power to spoil your life, or retard your eminently successful career."

"Failure in love affairs can 'spoil' no lives of those who maintain consciousness of moral rectitude, and a justifiable self-respect; but occasionally such keen disappointments prove beneficent tonics in teaching a wise discrimination between sham and reality, shadow and substance. Sooner or later men and probably women learn that the only human tie that even death cannot dissolve, the one reliable chain that no treacherous weak link can impair—is that binding the mother's heart to her child. In desperately bitter trials mother-love is the strengthening angel that sustains, and when the world turned its back upon me, my blessed mother was my sole solace and defender."

"Because knowing something of the truth she could not doubt. To her at least you had given facts withheld even from——"

"Pardon me. She was as absolutely ignorant as you, as all others who accused me. When that whirlwind of slander overwhelmed me I told her only what I made known to the woman who was my betrothed. When with tears streaming over her face she took me in her arms and asked: 'My boy,

are you guilty?' I could say only that I was entirely innocent, but bound by a solemn oath never to betray facts committed to me under seal of professional confidence; facts that involved two broken-hearted women and a noble old man, my friend in fatherless, needy boyhood whom I had sworn to shield from disgrace and ruin. My mother lifted my face, looked steadily into my eyes and raised one hand: 'My son, you swear to me on your honor as a gentleman, on the honor of my boy Royal, that this is true—that you would be a traitor to divulge the facts proving your innocence?' She kissed me when that oath passed my lips, and from that hour she abstained from all questioning; she clung tenderly to me, believing in my innocence as she believed in the existence of her God. You had the same assurance, all that I could honorably give. Mother-love held through all assaults, no link gave way;—but yours? The chain snapped at the first taut strain—crumbled like sand."

She had grown very white, and unconsciously her fingers lifted the quivering fiery stones that bound her throbbing throat.

"Let the ashes of long dead injuries rest over all that once disquieted you. If you had only trusted me I should have held the secret inviolate even to the gates of death."

"The shameful secret was not mine to divulge. 'Trusted you?' I trusted you to trust the honor of the man you had promised to make your husband. When on my knees I swore to you that my innocence, temporarily discredited, must inevitably be established some day by those for whose sins I was branded, do you recollect quite all you gave me in return? That thirteenth of July you hurled my ring at my feet, denounced me as a despicable hypocrite—as a leper unfit to defile your presence; you denied me even the right of acquaintanceship, vehemently forbade the privilege of recognizing you by word or sign. Even then I partly forgave your frantic, passionately bitter accusation, because I realized how revolting to your pure, womanly instincts was the grievous slander. You cast me out of your life as a disgraced villain who had forfeited all right to associate with gentlemen. No alternative was mine; I submitted to your cruel edict. Very soon the pall that seemed to blot out all hope for me, was suddenly and strangely lifted by that tragic deathbed revelation which cleared me of all blame, and left no shadow to sully my name. I stepped back to the plane of

honorable manhood. Since the day of that complete vindication, twelve long years have passed. I waited, not patiently, but I waited watching for some message, some signal from the woman who had promised to become my wife, and who owed me a renewal of confidence. Knowing me innocent you have elected to keep me under ban."

The concentrated bitterness of his deliberately uttered indictment, and the merciless searchlight in his eyes had no power to shiver the pallid rigidity of the face proudly uplifted.

"Having forfeited all claim to your kind or friendly remembrance, how could you, who know my nature, expect me to invite intolerable humiliation from your rejection of any overture I offered that involved confession of wrong? I had no right to assume that a message from me would be acceptable, and as far as I knew, your life was so serene and satisfying that any echo thirteen years old would prove only an intrusive discord. Our alienation was complete and you carefully shunned any opportunity to end it."

"Had you allowed me the liberty of approach? I obeyed your command, I followed the line you dictated, I rigidly refrained from word or letter and I accorded you the silence you demanded. My mother urged me to venture some overture for reconciliation, and just before her death I found a letter she had addressed to you in my behalf. Self-respect forced me to expostulate, and at her bedside I burned that letter. At least I am entitled to your thanks that in no degree have I attempted to invade the territory, from which I was so ignominiously ejected."

"In saying good-night, and also an eternal good-bye, I beg your Excellency's acceptance of my thorough appreciation of, and thanks for your courteous and consistent compliance with my wishes."

She turned away quickly, but his hand fell upon her shoulder.

"Devota! Devota!"

"Governor Armitage exceeds even his official rights, and usurps a privilege I grant no man. Do not touch me.

He shook her gently as one might a wayward child, and her haughty repose could no longer defy the tender, glowing eyes so close to her own.

"How much longer do you intend to impale us both on the iron cross of your cruel, despotic pride? Since the responsibility for our meeting here is yours, not mine, I will speak at last, and you shall listen. For a time, after you forsook me, I bore up bravely, sustained by the belief that my banishment was temporary, because I felt assured that vindication, though tardy, was inevitable. Sooner than I dared to hope that woful tragedy removed all suspicion from me, lifted me back at once to the position of which my slanderers had robbed me, and I exulted in the anticipation of our speedy reunion; watched the hour of every mail delivery. After you went abroad the second time I realized that my doom was permanent, that your proud obstinacy would prevent you from ever lifting a finger to recall me, and then I grew desperately bitter. About six years ago I was tempted to find some relief by a change of conditions that were reducing me to callous cynicism. I set to work diligently to cultivate an affection for a very lovely woman I thought it possible I might win by persistent devotion. I longed to forget, to supplant you, to cast you out of my life as completely as you had exiled me; but despite all efforts when I tried to picture her as mistress of my home, as sharing my name, my heart revolted. Your haunting face rose before me, your dear, beautiful hands seemed to steal into mine as in the days when they belonged to me. I abandoned such futile struggles and accepted the lonely lot that could not be averted. So long as you remained Miss Lindsay I had the right to recall all that was so precious thirteen years ago. Then came the supreme trial; it was the general opinion of your social world that Kingdon had won his suit, and that the day of his marriage was not distant. I knew he was worthy, was the most admired and envied man in our State, and it seemed incredible you should not accept the glittering future he offered. You cannot realize the maddening torture that seizes a man, when he thinks that the one woman in all the world who holds his heart in the hollow of her hand will be clasped in the arms of another entitled to call her his wife! So keen was my suffering that I think the damned would not have changed places with me. Then Kingdon suddenly altered the date of sailing, and in bidding me good-bye told me you had twice rejected him. Business had called me to your city, and after his farewell visit that night I could not bear the noise and bustle of the hotel. I

walked about the parks and up and down the streets, and though the sleet was falling I wandered to the avenue where your great stone house towers above all others. Standing on the pavement in front I listened to the city clock clanging two A.M. A light shone from an upper window; elsewhere all was dark. Only granite walls shut me from sight of one whose precious lips had felt the touch of mine. As I stood in the pelting sleet, over the silence of the night I heard a sound that seemed to come from the opening heavens. An organ roll thrilling that 'Adagio' no fingers but yours had ever adequately interpreted to me. Our Adagio—yours and mine—sanctified by blessed associations with the hallowed days of our betrothal. As I listened, the dreary lost years rolled away as a black curtain, and in the limelight of memory I saw again all our surroundings on that last happy evening when you played for me; the misty purple of mountain heights, the ferny gorges where scarlet rhododendrons flared their torches, the clustering honeysuckle whose chalices swung in the breeze, and you—my promised bride—seated at the piano, the sunset glow burnishing your hair, your white dress and floating blue ribbons. I knew your touch; the passionately tender, closing chords drifted like a whisper from our past, like an answer from your soul to the call of mine, and it told me why Kingdon could never claim you. Ah! tears gathered, dripped; happy tears. I knew then you could not forget, and since that night I have found grim comfort in the belief that only your inexorable, merciless pride stood between us. Sweetheart of my young manhood, darling of my lonely, weary old heart, will you crucify us both until death ends all?"

She had withdrawn from his detaining hand, shrinking back to the support of the dial, but the surging torrent of his words stirred frozen depths never before beyond control. Tears glittered in her eyes, and her lips fluttered like wind-swept rose leaves.

"You believe my pride separates us now? No, no; not pride. Can't you understand that my bitter humiliation is the barrier that shuts me out? The lofty distinction you have attained is the dividing wall I could never scale. In the dark days of calumny I forsook you; when most you needed loyalty I refused to share your disgrace. Now, as the popular idol, at whose feet the noblest public tributes are laid, you must accept my confession that I am not worthy to share your honors. I was weighed in the balance and found

wofully wanting. The verdict of the scales thirteen years ago cannot be reversed by an eternity of regrets."

"Hush, hush! we bury the past. Twice at the polls the people gave me their confidence, and gratefully I hold the solemn responsibility as a precious trust to be sacredly guarded, but public applause is starving diet to a hungry heart. My darling, between you and me remains no question of confession or absolution, and to-night blots out those terribly bitter years. It is my right to readjust the balance; in one scale I lay all civic honors, the other holds my life-long Sweetheart outweighing every other earthly treasure. I ask at your hands the one blessing lacking in my career. Give me, oh, give me at last the only real crown that can glorify a man's life—the tender love of a faithful, pure wife! I will no longer be denied."

He stepped closer, took her cold, quivering hands in his warm palms, and she hid her face against his arm.



"Roy—my own Roy."

"You have suffered from my frantic accusations on that dreadful July day, but you will never understand the intolerable bitterness of my punishment, scourged all these dreary, mournful years by keen, torturing

self-reproach. Roy—my own Roy—I am not worthy, but the world is empty and desolate for me without the one love of my life."



Transcriber Notes:

Throughout the dialogues, there were words used to mimic accents of the speakers. Those words were retained as-is.

The illustrations have been moved so that they do not break up paragraphs and so that they are next to the text they illustrate. Thus the page number of the illustration might not match the page number in the List of Illustrations, and the order of illustrations may not be the same in the List of Illustrations and in the book.

Errors in punctuation and inconsistent hyphenation were not corrected unless otherwise noted.

On page 60, "possibilty" was replaced with "possibility".

*** END OF THE PROJECT GUTENBERG EBOOK DEVOTA ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.